

FEDERAL MARITIME COMMISSION

DOLLAR GENERAL LOGISTICS, LLC,

Complainant,

v.

YANG MING MARINE TRANSPORT CORP.,

Respondent.

Docket No. 25-12

**RESPONDENT'S MEMORANDUM OF LAW IN OPPOSITION TO MOTION FOR LEAVE TO
AMEND THE COMPLAINT AND IN SUPPORT OF MOTION TO EXTEND DEADLINES**

Respondent, YANG MING MARINE TRANSPORT CORP. ("YM"), by its attorneys Mahoney & Keane, LLP, opposes to so much of the motion brought by Complainant, DOLLAR GENERAL LOGISTICS, LLC ("DG"), as seeks leave to amend DG's Complaint and joins in so much of DG's motion as requests an extension of current deadlines.

POINT I. LEAVE TO AMEND THE COMPLAINT SHOULD BE DENIED.

A. LEGAL STANDARD.

A plaintiff should not be granted leave to amend its complaint if the change was unduly delayed, would result in prejudice to a party, or would be futile. See, generally, Foman v. Davis, 371 U.S. 178, 182 (1962); Azurite Corp. v. Amster & Co., 52 F.3d 15 (2d Cir. 1995). Under the Federal Rules of Civil Procedure, amendments to pleadings made more than 21 days after service require leave of the court, which should be given "when justice so requires." F.R.C.P. 15(a)(2). But leave may be denied on grounds such as "futility of amendment, undue delay, bad faith, dilatory motive, undue prejudice, or repeated failure to cure deficiencies by previous amendments." Bancoult v. McNamara, 214 F.R.D. 5, 8 (D.D.C. 2003) (internal citations omitted); see also, Hettinga v. United States, 677 F.3d 471, 480 (D.C. Cir. 2012).

(“A district court may deny a motion to amend a complaint as futile if the proposed claim would not survive a motion to dismiss.”) (citing James Madison Ltd. by Hecht v. Ludwig, 82 F.3d 1085, 1099 (D.C.Cir.1996)); MAVL Captial Inc. v. Marine Transport Logistics, Inc., Docket No. 16-16, 2017 WL 343693, *23 (F.M.C. Jan. 17, 2017) (“The factual allegations set forth in Complainants’ Complaint . . . are accepted as true. In order to slate a claim, Complainants would have to contradict these sworn allegations. Therefore, leave to amend the Complaint is denied as futile.”)

As held in Seafair USA LLC v. Sterling Container Line Ltd., Docket No. 22-34, 2023 WL 4418617 (F.M.C. Jul. 6, 2023), by way of example:

Here, the request to file an amended complaint was filed after discovery was completed and only ten days before SeaFair’s initial briefing was due. Delay is “undue” when an unwarranted burden is placed on the court or when the requesting party has had previous opportunities to amend. Collectis S.A. v. Precision Biosciences, 883 F. Supp. 2d 526, 532 (D. Del. 2012) (citing Estate of Oliva ex rel. McHugh v. New Jersey, 604 F.3d 788, 803 (3d Cir. 2010)). “Undue delay is delay that prejudices the nonmoving party or imposes unwarranted burdens on the court.” BNSF Ry. Co. v. San Joaquin Valley R.R. Co., 2011 WL 3328398, at *2, (E.D. Cal. Aug. 2, 2011) (citing Mayreaux v. Louisiana Health Serv. and Indem. Co., 376 F.3d 420, 427 (5th Cir. 2004)). The undue delay caused by the request to amend the complaint at this late date, after discovery has closed and briefing is about to begin, justifies denying it.

Moreover, the amended complaint may broaden the issues and lead to additional motions practice or the need to reopen discovery. This could further delay the proceeding and prejudice opposing parties. Courts particularly disfavor motions to amend whose timing prejudices the opposing party by requiring a reopening of discovery with additional costs, a significant postponement of the trial, and a likely major alteration in trial tactics and strategy. Adams v. Magnusson, 2021 WL 2078000, at *1 (D. Me. 2021) (citations omitted); Acosta-Mestre v. Hilton Int’l of P.R., Inc., 156 F.3d 49, 52 (1st Cir. 1998).

SeaFair does not explain why the motion to amend was not filed sooner. It appears that many of the proposed changes are, or should have been, within SeaFair’s knowledge, including SeaFair’s role as a “destination agent,” whether it collected payments for the charges at issue, and the damages sustained by SeaFair. Given the timing of the motion to amend, the undue delay, and the prejudice to opposing parties and the court, the motion for leave to amend is denied.

Seafair, 2023 WL 4418617 at *2.

WL 5054943 (F.M.C. Dec. 5, 2024), similarly found:

Complainant requests the amendment of the complaint to increase the amount of reparations sought. Reparations will only be awarded based on actual damages. *Tractors & Farm Equipment Ltd. v. Cosmos Shipping Co.*, Docket No. 81-57, 26 S.R.R. 788, 798 (ALJ Nov. 23, 1992), admin. final, Dec. 31, 1992. Actual damages means “compensation for the actual loss or injuries sustained by reason of the wrongdoing.” *Cal. Shipping Line, Inc. v. Yangming Marine Transport Corp.*, Docket No. 88-15, 25 S.R.R. 1213, 1230, 1990 WL 427466, at *23 (FMC Oct. 19, 1990). “That does not require absolute precision but does require evidence sufficient to reasonably infer the actual loss sustained.” *MAVL Capital Inc. v. Marine Transport Logistics, Inc.*, Docket No. 16-16, 2022 WL 2209421, at *3 (FMC June 10, 2022). Complainant bears the burden of proving that they are entitled to reparations. *Id.*

The requested amendment here is ministerial and unnecessary. The Shipping Act requires that the “Commission shall direct the payment of reparations to the complainant for actual injury caused by a violation” of the Act. 46 U.S.C. § 41305(b). Actual injury for a contested proceeding is not limited to the amount listed in the pleadings. Indeed, Commission Rules have specific provisions for providing proof of reparations in certain situations after a determination on the merits. 46 C.F.R. §§ 502.251, 502.252. In other cases, the Commission has accepted proof of damages on remand. *Gruenberg-Reisner v. Overseas Moving Specialists, Inc.*, Docket No. 1947(I), 34 S.R.R. 613, 623 (FMC Oct. 7, 2016). While these provisions may not apply to this case, they demonstrate that reparations generally are not limited to the amount listed in the amended complaint. The exception is where there is a default decision. *See MCS Industries, Inc. v. COSCO Shipping Lines Co., Ltd. and MSC Mediterranean Shipping Company SA*, Docket No. 21-05, 2024 WL 692719, at *13 (ALJ Feb. 16, 2024) (*aff’d* 2024 WL 3514613, at *7, 15). Moreover, Respondents are now, prior to the filing of the briefs, on notice of the specific amount of reparations sought by Complainant.

Here, the request to file an amended complaint was filed after discovery was completed and less than a month before initial briefing was due. It is not unusual for the amount of reparations claims to change during the course of discovery and it is not necessary to file an amended complaint to update the specific amount sought, especially here where the categories of damages sought in the amended complaint are not changing, only the amount. The additional motion practice after the close of discovery only delays the proceeding and distracts the parties from focusing on preparing their briefs. The motion is therefore denied as unnecessary. Complainant may seek the increased reparations amounts in their initial brief and Respondents may oppose the amount on any appropriate basis in their opposition brief.

To the extent that the second amended complaint is not merely ministerial but rather is offered so that a different verification can be provided, that is the subject of another pending motion. It would not be appropriate at this late date, after discovery has ended, to permit such an amendment which could broaden the issues.

If the motion was not denied for being unnecessary, it would be denied based on undue delay. Delay is “undue” when an unwarranted burden is placed on the court or when the requesting party has had previous opportunities to amend. *Collectis S.A. v. Precision Biosciences*, 883 F. Supp. 2d 526, 532 (D. Del. 2012) (citing *Estate of Oliva ex rel. McHugh v. New Jersey*, 604 F.3d 788, 803 (3d Cir. 2010)). “Undue delay is delay that prejudices the nonmoving party or imposes unwarranted burdens on the court.” *BNSF Ry. Co. v. San Joaquin Valley R.R. Co.*, 2011 WL 3328398, at *2, (E.D. Cal. Aug. 2, 2011) (citing *Mayreaux v. Louisiana Health Serv. and Indem. Co.*, 376 F.3d 420, 427 (5th Cir. 2004)). The undue delay caused by the request to amend the complaint at this late date, after discovery has closed and briefing is about to begin, would also justify denying it. *See Seafair USA LLC v. Sterling Container Line Ltd. and Atlantic Forwarding Ltd.*, Docket No. 22-34, 2023 WL 4418617, at *2 (ALJ July 6, 2023).

20230930-DK- Butterfly-1, 2024 WL 5054943, at **2-3.

B. UNDUE DELAY.

Discovery in this case closed on May 22, 2026, prior to the filing of the motion, and merits briefing is due in just a few weeks. See, Second Amended Scheduling Order, Docket Entry No. 24. Fact discovery upon which the motion purports to be based was concluded back on April 17, 2026. Id.

Attempts to interpose amended pleadings so far into the proceedings, to wit: after the close of discovery, have been routinely denied as untimely, see, 20230930-DK- Butterfly-1, 2024 WL 5054943, at *3; Seafair, 2023 WL 4418617 at *2.

And certainly no reason has been presented why this matter should pose any exception. Indeed, the very same conduct alleged on the part of YM was the focus of extensive discovery and briefing by plaintiff’s counsel more than a year ago in the case of Bed Bath & Beyond Inc. v. Yang Ming Transport Corp., Docket No. 23-10. See, generally, Bed Bath & Beyond, Docket No. 23-10, at Complainant’s Brief, Docket Entry No. 53.

In any event, amendment of pleadings at this late juncture is plainly contrary to FMC precedent and should be rejected out of hand.

C. PREJUDICE.

The prejudice which would be visited upon YM were the amendment to be permitted is readily apparent on the face of the proposed amended complaint. It is no mere notice pleading. It unnecessarily includes no less than 192 highly detailed factual allegations selectively (and misleadingly) drawn from the several depositions and, literally, millions of documents which have been produced in this matter. While, as discussed above, DG took its time in bringing the motion at its leisure, just going through the record in order to properly respond by way of an answer would now pose a severe burden upon YM and its counsel at a time when we are already confronted with a massive amount of discovery still to be sifted through and analyzed with an eye toward the merits briefing.

Perhaps more importantly, the proposed amendments raise issues as to which YM, through no fault of its own and in reliance on the current pleadings, has had no opportunity to explore by way of discovery. For example, no witness questioning or disclosures have been sought or provided concerning “reparations” damages occurring in the 2022-2-23 shipping year, which DG, for the first time, now wishes to insert into this case. The injustice of allowing the proposed amendment under such circumstances is palpable and should not be allowed.

D. FUTILITY.

The proposed new factual allegations are said to involve activity that occurred during the 2020-2021 supply-chain snarls in the immediate aftermath of the COVID-19 pandemic. See, Proposed Amended Complaint, Exhibit A to DG’s Motion. And the purportedly newly discovered activity which forms the basis of the proposed additional causes of action was never “fraudulently concealed.” Indeed, as DG admits, it was all freely and timely disclosed in the course of discovery, and, of course, YM was

under no obligation to provide DG access to such discovery in advance of that process, even if it had been sought. As such, the new causes of action, which DG avers are not based on the same conduct alleged in its original complaint, are plainly time-barred, and cannot relate back.

“The Commission has long treated its statute of limitations as jurisdictional. This is in tension with the general rule that statutes of limitations are not jurisdictional and typically may be equitably tolled.” In re: Vehicle Carrier Serv’s, Docket Nos. 16-01, 16-07, 16-10, and 16-11, 2019 WL 5558120, *23 n.18 (F.M.C. Oct. 21, 2019) (citing W. Overseas Trade & Dev. Corp. v. ANERA, 26 S.R.R. 874, 885 (FMC 1993) (“The Commission has consistently held that [the] statute of limitation contained in section 22 of the Shipping Act, 1916 (‘1916 Act’) is jurisdictional and cannot be waived.”); Aleutian Homes, Inc. v. Coastwise Line, 5 F.M.B. 602, 604 (FMB 1959) (“Implicit in complaint’s argument is the assumption that the parties may agree to waive or postpone the running of the statute. This cannot be done since the expiration of the time limit not only bars the remedy but also extinguishes the right, thereby nullifying the jurisdiction of the Board over the claims.”) (internal citations omitted)).

Moreover, and the above notwithstanding, amendment so as to include the “reparations” claim has previously been sought by DG’s counsel and rejected as unnecessary. See, 20230930-DK- Butterfly-1, 2024 WL 5054943, at **2-3.

Furthermore, merely offering that cargo might be carried to less congested ports for discharge from vessels should hardly support a finding of a Shipping Act violation. That is all the more certain when the fact that the ultimate inland destination (Fulton, Mo.) for the subject cargo remained the same. All that changed, (the freight rate remained identical) was to avoid discharging at the ports of LA/LB which at that time suffered from well-known and reported historical ship congestion and the equally well-known congestion at the railheads servicing those ports. The alternative merely suggested by YM (to discharge at the port of Tacoma and to utilize the less congested railhead there) was just an attempt at a

practical solution to a serious problem in the flow of cargo. And even assuming, arguendo, proof of an undue preference or advantage were presented, see, MSRF, INC. v. HMM Co., Docket No. 22-20, 2023 WL 8242695 (F.M.C. Nov. 22, 2023) (“[N]o evidence was provided to establish that HMM gave a preference or advantage or imposed a prejudice or disadvantage regarding use or avoidance of any port to the detriment of MSRF. Accordingly, the third element fails and the allegation that HMM violated Section 41104(a)(9) is dismissed.”), the FMC has already determined that port discrimination or preferences in violation of 46 U.S.C. Section 41104(a)(5) and/or 46 U.S.C. Section 41104(a)(9) do not apply to such practices vis-a-vis individual shippers such as DG. See, OJ Commerce, LLC v. Hamburg Sudamerikanische Dampfschiffahrts-Gesellschaft A/S & Co., Dcket No. 21-11, 2022 WL 4017209 (F.M.C. Aug. 31, 2022) (“The complaint does not identify any ‘commodity group’ or any ‘type of shipment.’ The complaint does raise issues about practices regarding rates or charges but does not indicate that the practices are targeted to a specific port. Rather, it appears that the alleged conduct was targeted at a particular shipper. It therefore does not appear that the allegations would fit within the requirements of this section.”). Id. (“The complaint does not indicate that the alleged undue or unreasonable preference or advantage or prejudice or disadvantage were targeted at a specific port. Rather, it appears that the conduct was targeted at a particular shipper. It therefore does not appear that the allegations would fit within the requirements of this section.”).

Finally, the idea that by being unable to fulfill MQC or simply “proposing” that the contract for the next shipping year include a lower MQC reflective of the ever-changing availability in capacity faced by all ocean carriers on these routes could even possibly violate 46 U.S. Code Section 41102(d) is similarly absurd. And most remarkably, DG’s counsel has (in yet another uncited decision) already been cautioned that the new Section, which post-dates the conduct at issue, does not apply and, under the former Section, 46 U.S.C. § 41104(a)(3), such allegations fail to state a claim. See, 202390930-DK-

Butterfly-1 v. MSC Mediterranean Shipping Co., Docket No. 23-12, 2024 WK 1299768, *5 (F.M.C. Mar. 25, 2204) (“[T]he complaint *sub judice* does not plead facts that demonstrate that BBBY threatened to file a complaint, or engage in any way, with the Commission. It is not necessary to discuss the other elements of the retaliation claim because MSC did not raise them in the Motion and this required element of the retaliation claim is not met.”).

On all of these grounds, as well, therefore, no sound basis in law to file the amended complaint has been established.

POINT II. THE CURRENT DEADLINES SHOULD BE EXTENDED.

The amount of time previously sought by the parties’ last motion (in January) to extend deadlines was denied, and a smaller extension was given instead. See, Second Amended Scheduling Order, Docket Entry No. 24. The parties managed to complete discovery in well under one year since the filing of the Complaint, accordingly, even though, as mentioned above, the amount of that discovery in this case has been truly massive and the effort grueling. Just on YM’s production side alone, the final Bate page numbering exceeded 2 million. DG also produced a great number of documents as previously reported. Depositions included travel to Taiwan by YM General counsel and this firm for two TM witnesses in that country, as well as an additional two DG-related witnesses located in Hong Kong deposed by virtual means, all in addition to six U.S.-located depositions of fact witnesses. Production of four expert reports ensued, followed by depositions of those four experts. The last expert’s deposition was only completed on May 28, 2026 and that transcript received on June 1, 2026. Irrespective of the need to now address DG’s instant motion to amend its pleading, all of that material is still being reviewed and represents yet another monumental undertaking.

For what it's worth, the briefing period for YM also includes a week of the undersigned's July family vacation, with non-refundable payment having been made in December of last year before the current schedule was issued, sua sponte.

YM thus appreciates the FMC's interest in seeing dockets move apace but respectfully submits that that interest would still surely be maintained even were the adjournments now sought to be granted. Certainly, both sides feel that all concerned would be better served by easing the rush just a little bit.

CONCLUSION.

Wherefore, YM requests that DG's motion be denied to the extent it seeks leave to file the proposed amended complaint and granted to the extent it seeks an extension of the current briefing deadlines.

Dated: New York, New York
June 4, 2026

Respectfully submitted,

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